

Full Name of Party Filing Document

Mailing Address (Street or Post Office Box)

City, State and Zip Code

Telephone

Email Address (if any)

IN THE DISTRICT COURT OF THE _____ JUDICIAL DISTRICT OF
THE STATE OF IDAHO, IN AND FOR THE COUNTY OF _____

STATE OF IDAHO,
Plaintiff,

v.

Petitioner / Defendant.

Case No. _____

Petition to Shield Records from Public
Disclosure

I.C. § 67-3004(11)

Petitioner / Defendant asks the Court to shield from public disclosure all records in this case,
based upon the following:

1. The offense(s) that I petition to have shielded is eligible for such relief as it is:
 - ☐ a misdemeanor that is not assaultive or violent as listed in Idaho Code section 67-3004(11)(b) or
 - ☐ a felony possession of a controlled substance under Idaho Code section 37-2732(a), (c), or (e).
2. At least five years have passed since completion of my sentence, including all ordered probation, parole, fines, and restitution.
3. During the five years since completion of my sentence, I have not had any subsequent felony or misdemeanor convictions, and I am not on probation or parole for a subsequent conviction.
4. I have no pending misdemeanor or felony cases against me.
5. I have no restraining orders against me in effect at the time of filing this petition.

6. I have not previously been granted relief pursuant to Idaho Code section 67-3004(11), and I understand that I can have only one (1) petition granted pursuant to Idaho Code section 67-3004(11) during my lifetime.
7. I understand that if the court orders my records shielded from public disclosure and I receive a subsequent felony or misdemeanor conviction, the shielding of my records is subject to revocation.
8. I understand that if the court orders my records shielded from public disclosure, such shielding does not prohibit law enforcement personnel, court staff, or prosecuting attorneys from accessing my records.

CERTIFICATION UNDER PENALTY OF PERJURY

I certify under penalty of perjury pursuant to the law of the State of Idaho that the foregoing is true and correct.

Dated: _____

Petitioner / Defendant